

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT  
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA  
FAMILY DIVISION**

IN RE: THE MARRIAGE OF

SARAH HANSON,  
Petitioner,

Case No.: 24-DR-1150

and

Division: D

CHRISTOPHER HANSON,  
Respondent,

\_\_\_\_\_ /

**HUSBAND/RESPONDENT'S MOTION TO VACATE, FOR REHEARING AND IN THE  
ALTERNATIVE FORMAL WRITTEN ORDER IN PLACE OF 2-6-25 ORDER DENYING  
MOTION TO DISQUALIFY JUDGE AYERS WITHOUT IDENTIFYING THE  
INSUFFICIENCY OR GROUNDS FOR DENIAL**

The Respondent, CHRISTOPHER HANSON, by and through his undersigned counsel and pursuant to Fla. Fam. L. R. P. 12.100, files this Motion, and, in support thereof, states as follows:

1. Husband filed a verified motion to disqualify Judge Ayers on January 29, 2025, listing extensive concerns about Judge Ayers bias specifically against Husband, and the tendency to have far more concern for even unethical lawyers than the litigants before her.

2. Despite raising serious concerns about repeated violations of Husband's right to due process, the Court simply denied the motion, apparently preventing any other Judge from addressing these concerns which only further prolongs the period of conflict and division for the family. (Docket #119).

3. Husband files this motion to request the Court vacate the order and enter a new order granting immediate disqualification. And in the alternative, Husband respectfully requests the Court write a formal order explaining any alleged insufficiencies

in the verified motion and a detailed explanation of all other grounds for denying the motion, with consideration of Husband's arguments in the relevant pleadings.

4. The parties recently attended a hearing on February 12, 2025 that left Husband even more confused as to how he could ever expect a fair process.

5. Judge Ayers entered the Courtroom clearly furious and almost immediately began scolding Husband for emails to her JA that were too long and both Husband and Mr. Davis for emails back and forth.

6. Husband understood how to address the emails with the JA, but expressed his concern over any allegedly inappropriate emails to Mr. Davis.

7. Neither the Court nor Mr. Davis provided a single example of such allegedly inappropriate communication from Husband.

8. The emails from Husband get right to the truth, and they do so precisely and in a verifiable manner. That's why Mr. Davis hates them so much is he knows they illuminate the lies he's pushing for completely inappropriate purposes.

9. As of January 21, 2025, the parties understood the hearing would cover the Motion for clarification at Docket #91. (See notice filed at 106, that same day).

10. Then on February 10, 2025, the Court issued orders that denied the Motion for clarification at Docket #91, thereby robbing Husband of the chance to create a record on that critical issue at the hearing set just 2 days later. (Docket #106-107).

11. And then during the hearing on February 12, 2025, Judge Ayers apparently held a "hearing" on that motion for clarification that was already denied, although Husband needs to wait for the transcript to understand.

12. Regardless, this is similar to the Hearing on Husband's Motion for Rehearing relating to the order allowing Ms. Hodz's immediate withdrawal.

13. There's absolutely nothing about the hearing on rehearing from early January or any illusory hearing on the motion for clarification that may have occurred February 12 that in any way fixes the damage the Court has caused with these constant biased conclusions, that all happen to fall, directly against Husband's interests.

14. The hearing on February 12, 2025 seemed like a brainstorming session on how to not only deny Husband the discovery at the absolute core of all of this, but how to justify not applying the rules to Wife.

15. At the hearing, Judge Ayers suggested that they are required to produce all of the information for mandatory disclosures but didn't think they actually had to swear that was everything that they actually had.

16. It did not appear that Judge Ayers had any concern whatsoever about allowing them to violate the spirit of the rule if her understanding of the rule had been correct.

17. Judge Ayers was discussing allowing Wife and Mr. Davis who have remained out of compliance with the Court's order since October 28, 2024, inexplicably refusing to address this issue where they failed to certify what's required in the rules for the certificate of compliance. However, Judge Ayers at one point also ruled that Wife was required to comply with the rule, which requires certification.

18. While the Court continues to excuse the dozen plus ethical and discovery violations that all relate to concealing this same information at issue in this "certification."

19. It seemed the Court was considering giving them an, “ahhh that’s good enough” on the mandatory disclosures certificate of compliance despite the blatantly suspicious (if not obvious) inference that they’re hiding stuff that doesn’t allow them to answer the question honestly.

20. The dishonesty in Wife’s position is readily apparent as she’s specifically refusing to fully comply with the rule, yet suggesting there’s nothing to hide.

21. Yet, Judge Ayers specifically stated she was not interested in why they couldn’t just comply with the rule as Husband has pleaded for many months.

22. It’s terrifying to Husband that the Court sees this mandatory disclosure issue where Wife can’t/wont swear to what’s required in the rules, and the Court goes in complete opposition to the rules and their objectives, just in order to protect Wife and Mr. Davis.

23. Or perhaps the motivation is to further prejudice Husband as there’s no other motive.

24. The Court is so close to at least some answers for Husband, but is aggressively disinterested in asking those obvious questions at the core of everything plaguing this family.

25. The undersigned is completely unsure of what rulings Judge Ayers made on the mandatory disclosures, but if it doesn’t require strict compliance with the rules, this is the new, most problematic inexplicable conclusion she’s reached.

26. It’s entirely clear at this point that it’s beyond bias that is controlling Judge Ayers, as the animosity from the Judge was quite clear throughout the February 12, 2025

hearing.

27. Husband understands that Judge Ayers may be frustrated with what he's stated, but Husband remains willing to explain and prove his statements or correct any mistakes.

28. At the January 21, 2025 hearing, the pattern of Judge Ayers continuously excusing and shielding Mr. Davis from any scrutiny over severe ethics violations remained consistent. (Docket #118).

29. Husband addressed some of the specifics from the January 21, 2025 hearing in a letter to the Chief Judge dated February 12, 2025, and incorporates those points here by reference to the letter. (Docket #118).

30. Judge Ayers revealed her failure to understand that even if the validity of the PMA is to be heard at a final hearing, evidence is still necessary to evaluate reasonableness, which is precisely what Mrs. Hanson and Mr. Davis want, and what Judge Ayers does despite a lack of any facts or law that support that position. (Docket #118, p. 18-19).

31. It almost seemed like Judge Ayers was going to allow a discussion about Mr. Davis's ethical violations at the January 21, 2025 hearing at p.14, L25, when she asked Husband, "What conduct?" in relation to Mr. Hanson's statement about his antics just above. (Docket #118).

32. Of course, Mr. Davis immediately interjected preventing a discussion about his conduct. (Docket #118, p. 15, L1-12).

33. It unusual that the Court never had any questions for Mr. Davis about

whether he was guilty of the allegations nor whether he even wanted to explain or defend himself.

34. Further, the Court never disciplined Husband for the very serious comments and accusations, suggesting Judge Ayers is aware that all of my allegations are true and accurate.

35. At p. 34-35, Judge Ayers explains her understanding of the attorney withdrawal rule as, unless the client has, “a legal basis for [Judge Ayers] to keep [the attorney] on, they have the right to withdraw.”

36. The information about Judge Ayers campaign was not provided vindictively as that independently raises precisely the same types of concerns (impartiality, fairness to litigants, and confidence in the judicial process) that are already a very real part of Husband's experience the past several months.

37. Judge Ayers invested an enormous amount of money in the Judgeship she obtained through the 2020 election and will be up for reelection next year.

38. That certainly provides some possible explanations behind this significant bias in favor of the attorneys and against Husband.

39. Even if Judge Ayers insists that she was impartial throughout this, she should still disqualify herself based on these appearances and public perception.

40. Failing to grant the disqualification at this point results in further prejudice to Husband and his right to due process.

WHEREFORE, the Respondent, CHRISTOPHER HANSON, requests the Court enter an Order:

A. Vacating the February 6, 2025 order, and enter a new order granting the motion to disqualify Judge Ayers from any further action on this case;

B. In the alternative, issue a formal written order describing the grounds for denying the motion.

C. Granting Respondent all other and further relief as this Court deems just and necessary.

### **CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to all designated on e-service list on this 30th day of December, 2024.**

**/s/ Chris Hanson**

**Chris Hanson**

**Primary E-Mail: cahanson77@yahoo.com**